EXP-TO-EXP AGENT REFERRAL AGREEMENT

ORIGINATING BROKERAGE

Originating Brokerage: _____

Originating Agent's Name: _____

Originating Agent's Phone Number: _____

Originating Agent's Email Address: _____

RECEIVING BROKERAGE

Receiving Brokerage: _____

Receiving Agent's Name: _____

Receiving Agent's Phone Number: _____

Receiving Agent's Email Address: _____

CLIENT

Referral Opportunity ID: _____

Client Name(s): _____

Phone Number: _____

Email Address: _____

Term: The term of this Referral Agreement will begin on _____ and expire on _____ (the "Term").

Agreement to Pay: Receiving Brokerage agrees to pay a referral fee ("Referral Fee") to Originating Brokerage upon consummation of each/any transaction that is subject to this Referral Agreement, as evidenced by recordation of any conveyance deed or delivery of an analogous document used in Receiving Brokerage's jurisdiction (each, a "Closing"). Receiving Brokerage's obligation to pay the Referral Fee shall arise whether a Closing occurs during or after the Term, if during the Term of this Referral Agreement, Client:

- ☐ Enters into Contract to Buy
- ☐ Enters into Contract to Sell
- ☐ Enters into Contract to Lease
- ☐ Other

Referral Fee: Each Referral Fee to be paid under this Referral Agreement shall be denominated and paid in Originating Brokerage's currency, with Receiving Brokerage being responsible for any fluctuations in exchange rates, and all costs of currency conversion, if applicable. Each Referral Fee shall be (*check only one*):

- ☐ _____(%) of the gross commission amount earned by Receiving Brokerage; or
- ☐ Exactly _____ at the close of escrow.

Additional Terms:

Notification: Receiving Agent agrees to notify Originating Agent of Client entering into contract within five (5) business days of contract acceptance and estimated closing date.

Applicable Law: This Referral Agreement shall be subject to and interpreted in accordance with the laws of

Entire Agreement: This Referral Agreement constitutes the entire agreement between Originating Brokerage and Receiving Brokerage concerning Client, and supersedes any other agreement or understanding between the parties concerning the same. This Referral Agreement shall not become binding upon either Originating Brokerage or Receiving Brokerage until all four of the below signature blocks are signed.

Required Documents: As a condition for receiving payment, Originating Brokerage shall provide to Receiving Brokerage with any and all documents that Receiving Brokerage may require in order to make payment to Originating Brokerage.

Closing Statement: Copy of closing statement/final settlement statement to be provided by Receiving Brokerage to Originating Brokerage together with payment to Originating Brokerage.

Withholding Tax: To the extent Receiving Brokerage is required by any applicable income tax law or regulations to withhold a portion of any Referral Fee, Originating Brokerage shall accept the resulting net payment as due performance under this Referral Agreement. Provided however, that Receiving Brokerage shall take all necessary steps to secure the benefit of any reduction in the withholding tax rate available under any applicable treaty and shall promptly provide Originating Brokerage with a receipt for any income tax withheld.

Electronic Signatures: This Referral Agreement may be executed by original signature, scanned or copied signature, or electronic signature (such as through DocuSign®, HelloSign, or such analogous software). Any original signature, scanned or copied signature, or electronic signature shall be legally equivalent (with any associated legal consequences) under all applicable laws. An original signature, scanned or copied signature, or electronic signature, will not be denied legal effect solely because of the form in which it was made.

Payment Instructions: All payments to shall be made via bank transfer in the following manner:

REMIT ELECTRONICALLY;
From Receiving Brokerage:
To Originating Brokerage:

[*SIGNATURE PAGE IMMEDIATELY FOLLOWS*]

SIGNATURE PAGE
TO
EXP-TO-EXP AGENT REFERRAL AGREEMENT

ORIGINATING BROKERAGE:

_____

By: _____
Name: _____
Title: **Managing Broker**

By: _____
Name: _____
Title: **Originating Agent**

RECEIVING BROKERAGE:

_____

By: _____
Name: _____
Title: **Managing Broker**

By: _____
Name: _____
Title: **Receiving Agent**